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TOWN OF
WESTON

www.weston.org

Post Office Box 378
WESTON, MA 02493-0002
781-893-7320 *ext. 303* FAX 781-891-3697

TOWN CLERK

TOWN OF WESTON. INCORPORATED 1712-13.

# CERTIFICATE OF TOWN CLERK

I, M. Elizabeth Nolan, Town Clerk, Town of Weston, herewith certify that attached hereto is a true copy of the Variance/Special Permit decision of the Town of Weston, Board of Appeals, rendered February 8, 2005 and filed with the Town Clerk concerning the following described property.

| Name of Owner | Location of Property |
|---|---|
| **Ramesh Motwane** | **21 Drabbington Way, Weston, MA 02493** |
| | Book No. Page No. |
| | **16519 129** |

AND I FURTHER CERTIFY that more than twenty (20) days have elapsed since filing of the said decision with me and that no appeal of said decision been filed.

M. Elizabeth Nolan
Town Clerk
Town of Weston

February 22, 2005

MEN

MR Ramesh Motwane
21 Drabbington Way
Weston, MA 02493

TOWN OF WESTON
MASSACHUSETTS

BOARD OF APPEALS

There having been presented to the Board a petition for a variance dated December 22, 2004 by **Ramesh Motwane, 21 Drabbington Way, Weston, MA 02493** the Board decided to hold a hearing on said petition on Wednesday, February 2, 2005 at 8:10 p.m. and caused the following notice to be published in The Town Crier, a newspaper of general circulation in Weston on January 13 and 20, 2005.

TOWN OF WESTON
MASSACHUSETTS

BOARD OF APPEALS
**Hearing Notice**

Notice is hereby given that the Board of Appeals of the Town of Weston will hold a public hearing on **Wednesday, February 2, 2005 at 8:10 P.M.** in a conference room at the Weston Town Hall, on an application by Ramesh Motwane, **21 Drabbington Way, Weston**, MA (Map #13, Lot #111) under the Zoning By-Law of the Town of Weston, as amended, as to the above premises requesting a variance with respect to the extension of the garage area to accommodate vehicle length and allow passenger access within the building. This extension will cause the structure to be located less than the minimum distance from the northerly lot line that is required under said Zoning By-Law, as amended. The petitions and plans on all above applications with said Board of Appeals are available for public inspection in the office of the Board of Appeals on Monday through Friday, from 9 A.M. to 4:30 P.M.

Board of Appeals of the Town of Weston
By Robert P. Cook, Chairman

The Board also mailed the foregoing notice postage prepaid on January 13, 2005, to the following named persons deemed by the Board to be all of the persons affected by said petition as they appear on the most recent tax list:

**Petitioner: Ramesh Motwane**
(List of Abutters)
Lurie, Melvyn L., C/O Lurie, Rochelle S., 147 North Ave, Weston
Sunrise Weston Assisted Lvg,Lp, Attn: Tax, 7902 Westpark Dr,
Mclean, VA 22102
Kisen, Yulya, Kisen, Vadim, 12 Drabbington Way, Weston
Leung, Edward, Drabbington Way, Weston
Clapp, Ronald L.,4 Drabbington Way, Weston
Dillaway, Guy R., Dillaway, Barbara A., Po Box 181, Weston
Dillaway, Lance W., Tr., L&G Realty Trust, Po Box 181, Weston
Luu, Wai F, Tr., 25 Drabbington Way Realty Trust,
25 Drabbington Way, Weston
Drabbington Way Rlty Tr., Yao, Cheng, Etal Trs. Y Trust,
39 Drabbington Way, Weston
Guttrich, Gordon L., Guttrich, Linda J., 33 Drabbington Way, Weston
Shytle, Hugh T., Shytle, Doreen M., 36 Page Rd, Weston
Alesse, John W., Alesse, Helen C., 118 North Ave, Weston
Yung, Sun Chung, Mui, Kwok Wai, 126 North Ave, Weston
Bettie, Demetrius A., C/O Ng, Tat, 134 North Av, Weston
Bell, David P., Bell, Ann G., 121 North Ave, Weston
Lee, Roebrt K., 8 Marshall Way, Weston
Smith, Christine J., 9 Marshall Way, Weston
Mac Quiddy, Jean E., 107 North Ave, Weston
Willi, John P., Willi, Natalie A., 146 North Ave, Weston
Hersum, Eric R, 99 North Ave, Weston, ,
Jansen, Peter W., Jansen, Barbara A., 87 North Ave, Weston
Duffy, Robert L., Duffy, Natalie L., 24 Page Rd, Weston
Abraham, Kakkudiyil I, Abraham, Chachyamma, 30 Page Rd, Weston

Board of Appeals Members: **Knight, Li, Margulies**
In Hand To: Board of Assessors, Building Inspector, Conservation, Fire Chief, Board of Health, Planning Board Chairman, Board of Selectmen and Town Clerk.

Planning Boards: (Notice only) Lincoln, Natick, Newton, Waltham, Wayland, Wellesley

Ann I. Swaine, Clerk
Weston Board of Appeals

Pursuant to the foregoing notice the Board held a public hearing on Wednesday, February 2, 2005 at approximately 8:10 P.M. at the Weston Town Hall. The following members were present:

Peter C. Knight, Acting Chairman
Winifred I. Li, Acting Secretary
Marc Margulies

Mr. Motwane was represented by John Kowal, an employee of and architect in Mr. Motwane's company. The subject lot, located in Single Family Residence District B, is highly irregular in shape. The petitioner currently has a garage attached to his house which accommodates 2 cars and can accommodate 3 very closely parked cars. The current garage is not of uniform length: about two-fifths of the garage is approximately 16.6 feet long and the remainder of the garage is approximately 19.6 feet long. Unfortunately, the exact dimensions of the existing garage are not shown on the architectural and plot plans in the file. However, petitioner has indicated that the short length of the garage creates a very tight fit for automobiles. Petitioner wishes to extend the length of the garage by 6 feet in the shorter portion and by 4 feet in the longer portion, so the extended garage will be of uniform length. The plot plan indicates that the northerly lot line lies at an angle to the garage. If the garage is extended as described above, the northeasterly corner of the garage would be as close as 30.9 feet from the northerly lot line; this would violate the 35-foot setback required by the Zoning By-Law. The northwesterly corner of the extended garage would be 37.6 feet from the lot line, which would not violate the By-Law setback requirement. No objections to the petition were made known to the Board.

The Board agreed that the proposed addition would give petitioner a reasonably functional garage, which he does not have now. The Board also found that the requested variance is for a minor encroachment into the setback requirement of only one corner of the building. In view of these considerations, the Board unanimously voted to grant petitioner the requested variance to permit the building of the addition to his garage as shown on the plans in the file. The Board found a substantial hardship due to the irregular shape of the lot and the location and layout of the current structure. The Board also determined that granting the request would not be substantially detrimental to the public good or a substantial derogation of the intent and purposes of the applicable Zoning By-Law.

Petition Granted
A True Record

Attest: _____
Winifred I. Li, Acting Secretary
Weston Board of Appeals

RECEIVED
FEB 8 2005
TOWN CLERK
WESTON, MA

Attest. Middlesex S. Register